

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
8/16/2024 5:54 AM

Entry Number
8,276

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
211 Hope St #391751, Mountain View, California 94041

Judge and conduct

Judge 1

Name of judge
Beth McGowen

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

2022 - 2024, 12/06/2022, 11/13/2023, 11/30/2023, 02/20/2024, 03/11/2024, 03/12/2024, 04/08/2024, 06/14/2024, 06/17/2024, 06/20/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

Kostiantyn Mars
211 Hope St 391751
Mountain View, CA 94041
(408) 518 0088
Constantine.Mars@gmail.com
08/15/2024

Commission on Judicial Performance
455 Golden Gate Avenue, Suite 14400
San Francisco, CA 94102-3660
Email: cjp@cjp.ca.gov

Subject: Complaint Against Judges for Judicial Misconduct and Racketeering - Santa Clara County Superior Court

Dear Members of the Commission on Judicial Performance,

I am submitting this formal complaint concerning the egregious judicial misconduct committed by multiple judges in the Santa Clara County Superior Court. These actions involve violations of ethical standards, federal and state laws, and clear abuse of judicial power. The judges implicated are:

Presiding Judge Beth McGowen

Misconduct: Concealed the disqualification of Judges Stephen Lowney, Andrea Flint, and James Towery in case 22FL003144. She allowed these disqualified judges to continue presiding over my case, despite their disqualification due to conflicts of interest and their involvement in racketeering and extortion. She failed to transfer the case to another department, enabling further judicial misconduct.

Judge Stephen Lowney

Misconduct: Engaged in repeated acts of fraud, threats, coercion, and abuse of judicial resources. Despite being disqualified on multiple occasions, he continued to issue retaliatory rulings, including my arrest and a restraining order against my son. His rulings were influenced by bribery and aimed at facilitating the abduction of my son to Ukraine.

Judge Andrea Flint

Misconduct: Despite being disqualified, she committed fraud by issuing court orders that facilitated the abduction of my child, the enforcement of domestic violence, and the falsification of court records. These actions were retaliatory, with the clear intent of obstructing justice.

Judge James Towery

Misconduct: Disqualified for conflicts of interest, he played a role in the fraudulent issuance of restraining orders and engaged in financial coercion to facilitate the abduction of my child. He signed orders used to manipulate custody and financial outcomes through illegal means.

These judges' actions have significantly harmed me and my family. The misconduct includes violations of federal laws such as the Racketeer Influenced and Corrupt Organizations (RICO) Act and the Hobbs Act, as well as obstruction of justice and conspiracy to defraud.

I request an immediate and thorough investigation into these matters, the permanent removal of these judges from office, nullification of all orders issued in case 22FL003144 due to their illegal basis, and transfer of the case 22FL003144 to less corrupt San Mateo County Court.

Please find further details and supporting documentation in the following link:

https://drive.google.com/file/d/1P-nkfpMwTbCguSs1B38BSNO8S2Ts7-OE/view?usp=drive_link

Thank you for your attention to this critical issue. I am available to provide further information and evidence as needed.

Sincerely,
Constantine Mars

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Complaint to CJP 2024-08-15.pdf

Judge 2

Name of judge

Stephen Lowney

Or Name of court commissioner or referee

Court Level

Superior Court

Court of Appeal District

County

Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

2022 - 2024, 02/01/2024, 02/07/2024 02/20/2024, 03/11/2024, 03/12/2024, 03/21/2024, 04/08/2024, 06/14/2024, 06/17/2024, 06/20/2024

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Judge 3

Name of judge
Andrea Flint

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case
Family Law

Case name
Dissolution of Family Mars

Case number
22FL003144

Your relationship to the case
Litigant/Family/Friend

Date or dates conduct occurred

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Judge 4

Name of judge

James Towery

Or Name of court commissioner or referee

Court Level

Superior Court

Court of Appeal District

County

Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

2022 - 2024, 09/14/2022, 12/06/2022

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